

Court No. - 39

Case :- WRIT - C No. - 1855 of 2025

Petitioner :- Sunita

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Javed Alam, Nasim Uddin

Counsel for Respondent :- C.S.C., Pranjal Mehrotra

Hon'ble Siddhartha Varma, J.

Hon'ble Dr. Yogendra Kumar Srivastava, J.

1. As per the instructions, which the learned counsel for the Electricity Department has handed over to the Court, we find that 'arrears' have been calculated to the tune of Rs.56,664/- and certain 'surcharge' has also been charged from the petitioner. The instructions be kept on record. From the record of the writ petition, we find that the petitioner is a widow who had got her electricity disconnected on 23.2.2021.

2. Learned counsel for the petitioner, relying upon section 56(2) of the Electricity Act, 2003, has submitted that any bill which has not been charged for the past two years, could not be charged. Learned counsel for the petitioner has also submitted that surcharge should also not be taken from a poor widow.

3. Learned counsel for the Electricity Department may take instructions in the matter.

4. List this case on 19.2.2025 as fresh. In the meantime, if the petitioner deposits Rs.10,000/- with the Electricity Department, no coercive action shall be taken against her.

Order Date :- 22.1.2025

GS

(Dr. Y. K. Srivastava, J.)

(Siddhartha Varma, J.)

Court No. - 39

Case :- WRIT - C No. - 1855 of 2025

Petitioner :- Sunita

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Javed Alam, Nasim Uddin

Counsel for Respondent :- C.S.C., Pranjali Mehrotra

Hon'ble Siddhartha Varma, J.

Hon'ble Dr. Yogendra Kumar Srivastava, J.

1. Heard learned counsel for the petitioner, learned Additional Chief Standing Counsel for the State and learned counsel appearing for the Electricity Department.

2. This writ petition has been filed for the following relief:

"(i) Issue a writ order or direction in the nature of certiorari quashing the impugned demand notice dated 15.12.2024 issued by respondent no. 3 for recovering the amount of Rs. 1,65,932.78/- from the petitioner.

(ii) Issue a writ order or direction in the nature of mandamus directing the respondents to decide and consider the representation of the petitioner dated 21.12.2024."

3. As per the instructions, the petitioner has to pay the arrears of Rs. 56,664/-. Further a surcharge had also to be paid as there was delay in the payment. The petitioner, if is interested to make the payment in instalments, can always approach the relevant authority under Clause 6.14 of the Uttar Pradesh Electricity Supply Code, 2005. If the petitioner applies within a period of two weeks, then the relevant authority would consider to fix the instalments in the next one month.

4. For a period of two months, no coercive action shall be taken

against the petitioner.

5. With these observations, the instant writ petition stands ***disposed of.***

Order Date :- 19.2.2025

M.S. Ansari

(Dr. Y.K. Srivastava,J.) (Siddhartha Varma,J.)